

of the DPO to the supervisory authority.”

4. Conclusion.

In light of the above, it is evident that the Province of Catanzaro has failed to comply with the obligation to communicate the contact details of the Data Protection Officer to the Authority, as required by Article 37, paragraph 7 of the Regulation. This constitutes a violation of the provisions set forth in the Regulation and the Code.

5. Measures.

Therefore, the Authority, in accordance with Article 58, paragraph 2, of the Regulation, decides to impose the following measures on the Province of Catanzaro:

- a) to communicate the contact details of the Data Protection Officer to the Authority within 30 days from the notification of this provision;
- b) to ensure that the contact details of the Data Protection Officer are published on its institutional website, in compliance with Article 37, paragraph 7 of the Regulation.

6. Notification.

This provision shall be notified to the Province of Catanzaro and published on the Authority's website.

Rome, 11 January 2024

THE PRESIDENT

Prof. Pasquale Stanzione

of art. 58, par. 2, lett. i), and 83 of the Regulation; art. 166, comma 7, of the Code, to pay an administrative pecuniary sanction of €2,000 (two thousand euros) for the violation of art. 37, par. 7, of the Regulation.

Furthermore, it ORDERS the publication of this decision, in whole or in part, on the website of the Authority, in accordance with art. 166, comma 7, of the Code.

This decision is made in light of the considerations outlined above, confirming the preliminary assessments of the Office and establishing the unlawfulness of the processing of personal data carried out by the Province for failing to communicate the contact details of the Data Protection Officer (DPO) to the Authority in violation of art. 37, par. 7, of the Regulation.

6. Appeal

The Province of Catanzaro has the right to appeal this decision before the competent administrative court within the terms established by law.

7. Notification

This decision shall be notified to the Province of Catanzaro and published on the website of the Authority.

8. Final Provisions

This decision is effective immediately and shall be executed in accordance with the provisions of the Regulation and the Code.

Done in Rome, on [date].

[Signature]

[Name]

[Title]

[Authority]

of Articles 58, paragraph 2, letter i), and 83, paragraph 5, of the Regulation and Article 166, paragraph 2, of the Code, to pay the sum of €2,000 (two thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning;

ORDERS

The Province of Catanzaro to pay the sum of €2,000 (two thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the

adoption of subsequent executive acts pursuant to Article 27 of Law No. 689/1981.

In this regard, it is noted that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to Article 166, paragraph 8, of the Code (see also Article 10, paragraph 3, of Legislative Decree No. 150 of 1/9/2011);

PROVIDES FOR

the publication of this provision on the website of the Guarantor pursuant to Article 166, paragraph 7, of the Code;

the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and measures adopted in accordance with Article 58, paragraph 2, of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 11, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Stanzione

THE SECRETARY GENERAL

Mattei